# AMENDED AND RESTATED LIMITED LIABILITY COMPANY AGREEMENT OF HARBOUR MHC LLC

**THIS AMENDED AND RESTATED LIMITED LIABITLIY COMPANY AGREEMENT** (this "***Agreement***") of HARBOUR MHC LLC, a Delaware limited liability company (the "***Company***"), is entered into effective as of the 23rd day of March, 2022 by PARAKEET MHC SENIOR, LLC, a Delaware limited liability company and sole member of the Company (the "***Member***").

## RECITALS

**WHEREAS**, the Company entered into the Limited Liability Company Agreement of the Company, dated as of September 16, 2021 (the "***First LLC Agreement***"), with Parakeet MHC, LLC, a Delaware limited liability company ("***Parakeet***"), in accordance with the provisions of the Delaware Limited Liability Company Act (6 Del. C. § 18 101 et seq.), as amended from time to time (the "***Act***");

**WHEREAS**, pursuant to the Contribution Agreement (the "Contribution Agreement"), dated as of March 23, 2022, by and among (a) Parakeet, (b) Parakeet MHC Mezz, LLC, a Delaware limited liability company ("***Mezz***") and (c) the Member: (i) Parakeet contributed and assigned to Mezz, and Mezz accepted and assumed from Parakeet, all of the issued and outstanding equity interests of the Company (the "***Mezz Contribution***"); and (ii) immediately following the Mezz Contribution, Mezz contributed and assigned to the Member, and the Member accepted and assumed from Mezz, all of the issued and outstanding equity interests of the Company (the "***Senior Contribution***" and, together with the Mezz Contribution, the "***Contributions***"), such that following the consummation of the Contributions, the Company became a wholly-owned, direct subsidiary of the Member, subject to the terms and conditions in the Contribution Agreement; and

**WHEREAS**, in connection with the closing of the transactions contemplated by the Contribution Agreement, the Member desires to enter into this Agreement in accordance with the Act, which will amend and restate the First LLC Agreement in its entirety and govern the affairs of the Company and the conduct of its business.

**NOW, THEREFORE**, the Member agrees as follows:

## ARTICLE I
## FORMATION OF COMPANY

1.1 Name. The name of the Company is Harbour MHC LLC.

1.2 Formation. The Company was formed as a limited liability company pursuant to and in accordance with the Act on September 16, 2021, when its Certificate of Formation (the "***Certificate***") was filed with the office of the Delaware Secretary of State.

1.3 Principal Place of Business. The principal office of the Company shall be at such place or places as the Manager may designate from time to time.

1.4 Registered Office and Registered Agent. The address of the registered office of the Company in the State of Delaware is c/o Northwest Registered Agent Service, Inc., 8 The Green, Suite B, Dover, Kent County, Delaware 19901. The name and address of the registered agent of the Company for service of process on the Company in the State of Delaware is Northwest Registered Agent Service, Inc., 8 The Green, Suite B, Dover, Kent County, Delaware 19901. The Manager may change the registered office and registered agent of the Company in the State of Delaware.

1.5 Limited Liability; Defects as to Formalities. The debts, obligations and liabilities of the Company, whether arising in contract, tort or otherwise, shall be the debts, obligations and liabilities solely of the Company, and neither the Member nor the Manager shall be obligated personally for any such debt, obligation or liability of the Company solely by reason of being a member or manager of the Company. A failure to observe any formalities or requirements of this Agreement, the Certificate, or the Act shall not be grounds for imposing personal liability on the Member or the Manager for the liabilities of the Company.

## ARTICLE II
## BUSINESS OF COMPANY

2.1 Notwithstanding any provision of this Agreement to the contrary, the nature of the business and of the purposes to be conducted and promoted by Company is to engage solely in the following activities:

(a) To acquire and the own the real property, together with all improvements thereon, located at 821 Peachtree Street, Cocoa, Florida 32922, and commonly known as Harbour Mobile Home Park (collectively, the "***Property***"), and incidental personal property necessary or convenient for the ownership or operation of the Property;

(b) To own, hold, sell, assign, transfer, operate, lease, mortgage, pledge and otherwise deal with the Property interest therein;

(c) To perform its obligations under any loan documents evidencing any loan secured by the Property; and

(d) To exercise all powers permitted to limited liability companies organized under the laws of the State of Delaware necessary or convenient to the conduct, promotion or attainment of the business or purposes otherwise set forth herein.

2.2 Brenda LaLoggia, as an "authorized person" within the meaning of the Act, has executed, delivered and filed the Certificate of Formation of the Company with the Secretary of State of the State of Delaware, such filing being hereby ratified and approved in all respects. Upon the execution of the First LLC Agreement by Parakeet, her powers as an "authorized person"

ceased, and Parakeet thereupon became the designated "authorized person." The Member shall now continue as the designated "authorized person" within the meaning of the Act.

2.3 The existence of the Company as a separate legal entity shall continue until cancellation of the Certificate of Formation as provided in the Act.

## ARTICLE III
## MEMBER, CAPITAL CONTRIBUTION AND MANAGEMENT

3.1 Sole Member. Parakeet MHC Senior, LLC, a Delaware limited liability company having a business address of c/o Jadian Capital, 330 Madison Avenue, 20th Floor, New York, NY 10017, as the sole Member, owns one hundred percent (100%) of the limited liability company interests (the "***LLC Interest***") in the Company, including all rights to distributions, capital and allocations of income and loss in the Company and all rights as a member under this Agreement, the Certificate, and the Act. The Member was admitted as a member of the Company upon its execution of a counterpart signature page to this Agreement.

3.2 Contributions. The Member is deemed to have contributed to the Company property of an agreed value as listed on the Company's books and records. The Member shall make such additional contributions to capital as the Member may determine in the sole discretion of the Member at any time and from time to time. Notwithstanding anything to the contrary in this Agreement, the Member shall have no obligation to make any capital contribution at any time. No interest shall accrue on any capital contribution. The Member may withdraw or be repaid any capital contribution as the Member may determine from time to time in the sole discretion of the Member.

3.3 Management.

(a) Authority; Powers and Duties of the Manager. The Member shall appoint one or more Managers from time to time (each, a "**Manager**" and, collectively, the "**Managers**"). The initial Manager shall be Parakeet MHC, LLC, a Delaware limited liability company. The Member may remove any Manager at any time with or without cause. The Manager(s) shall have exclusive and complete authority and discretion to manage the operations and affairs of the Company and to make all decisions regarding the business of the Company except in regard to Material Actions. Any Manager may unilaterally agree to or bind the Company unless it involves (i) the dissolution of the Company, (ii) the admission of any member to the Company or (iii) amending this Agreement or the Certificate (collectively, (i) – (iii) are "**Material Actions**"). Material Actions require the approval of the Member.

(b) Persons dealing with the Company are entitled to rely conclusively on the power and authority of the Manager(s) as set forth in this Agreement. The Manager(s) shall have all rights and powers of a manager under the Act, and shall have such authority, rights and powers in the management of the Company to do any and all other acts and things necessary, proper, convenient or advisable to effectuate the purposes of this Agreement.

3.4 Reserved.

3.5 Officers. The Manager may designate and appoint officers (each an "***Officer***") and delegate duties to such Officers, at any time and from time to time in the discretion of the Manager, and to the extent permitted under the Act. The duties and authority of any Officer shall be limited to those expressly granted by the Manager. All Officers serve at the discretion of, and may be removed at any time with or without cause by, the Manager. The Manager, in its sole discretion, shall determine the compensation of any Officers.

3.6 Limited Liability. Except as otherwise expressly provided by the Act, neither the Member nor the Manager shall have any personal liability merely as a member or manager of the Company for any liabilities or losses of the Company beyond the Member's or the Manager's contributions to the Company. Additionally, except as otherwise expressly provided by the Act, the debts, obligations and liabilities of the Company, whether arising in contract, tort or otherwise, shall be the debts, obligations and liabilities solely of the Company, and neither the Member nor any Officer or employee of the Company shall be obligated personally for any such debt, obligation or liability of the Company solely by reason of being a member, officer or employee of the Company.

3.7 Indemnification. The Company shall indemnify the Member and the Manager for all costs, losses, liabilities, and damages paid or accrued by the Member and/or the Manager in connection with the business of the Company, all to the fullest extent provided or allowed by the laws of the State of Delaware. The Manager may, in the sole discretion of the Manager, also cause the Company to indemnify any or all Officers, employees or agents of the Company for all costs, losses, liabilities and damages paid or accrued by the Officer, agent or employee in connection with the business of the Company to the fullest extent provided or allowed by the laws of the State of Delaware.

3.8 Reserved.

3.9 Manager Transacting Business with the Company. The Manager may lend money to and transact other business with the Company, and the rights and obligations of the Manager in such transactions shall be the same as those of a person who is not a member or manager. No transactions with the Company shall be voidable solely because the Manager has a direct or indirect interest in the transaction.

3.10 Books and Accounts.

(a) The Company shall maintain books of account to be kept in accordance with generally accepted accounting principles. The books and supporting records of the Company will be maintained at the Company's principal office and may be examined by the Company's certified public accountants as determined by the Manager from time to time.

(b) All of the Company's funds shall be deposited in its name in an account with such bank or banks as the Manager may determine from time to time.

## ARTICLE IV
## TAXES

4.1 Elections. The Manager may make any tax elections for the Company allowed under the Internal Revenue Code of 1986, as amended from time to time (the "***Code***"), or the tax laws of any state or other jurisdiction having taxing jurisdiction over the Company.

4.2 Status. It is the intent of the Member and the Company that the Company is to be disregarded as an entity separate from the Member for purposes of the Code pursuant to Treasury Regulation Section 301.7701-3. Accordingly, no election to the contrary shall be filed by or on behalf of the Company and all income, gain, loss, deduction, and credit of the Company shall be reported by the Member on the Member's federal income tax returns.

## ARTICLE V
## DISTRIBUTIONS AND ALLOCATIONS

Distributions shall be made to the Member at the times and in the aggregate amounts determined by the Member. Notwithstanding any provision to the contrary contained in this Agreement, the Company shall not be required to make a distribution to the Member on account of its interest in the Company if such distribution would violate the Act or any other applicable law. The Company's profits and losses shall be allocated to the Member.

## ARTICLE VI
## DISPOSITION OF LLC INTEREST AND ADMISSION OF ASSIGNEES AND ADDITIONAL MEMBERS

6.1 Disposition. The Member's LLC Interest is transferable either voluntarily or by operation of law. The Member, at the Member's discretion, may transfer, gift, pledge or otherwise dispose of all or a portion of the Member's LLC Interest. Upon the disposition of a portion of the Member's LLC Interest, the transferee shall be admitted as a substitute member as to the transferred interest upon the completion of the transfer without further action, unless otherwise agreed. If the Member transfers all of its LLC Interest in the Company, such admission of the transferee as a member of the Company shall be deemed effective immediately prior to the transfer and, immediately following such admission, the transferor Member shall cease to be a member of the Company. Following the disposition of the Member's entire LLC Interest, the Member shall cease to be a member of the Company and shall have no further rights or obligations under this Agreement, except that the Member shall have the right to such information as may be necessary for the computation of the Member's tax liability.

6.2 Admission of Additional Members. The Member may, in the Member's discretion, admit additional members and determine the capital contributions and the ownership interest of such additional members; provided, however, this Agreement shall be amended and restated to reflect the new and additional terms approved by the Member as a condition to the admission of the additional member.

6.3 Resignation. If the Member resigns, an additional member of the Company shall be admitted to the Company upon its execution of an instrument signifying its agreement to be bound by the terms and conditions of this Agreement, which instrument may be a counterpart signature page to this Agreement. Such admission shall be deemed effective immediately prior to the resignation and, immediately following such admission, the resigning Member shall cease to be a member of the Company.

## ARTICLE VII
## DISSOLUTION AND WINDING-UP

7.1 Dissolution.

(a) The Company shall be dissolved, and its affairs shall be wound up only upon the first to occur of the following: (i) the written consent of the Member to dissolve the Company, (ii) the termination of the legal existence of the last remaining member of the Company or the occurrence of any other event which terminates the continued membership of the last remaining member of the Company in the Company unless the Company is continued without dissolution in a manner permitted by this Agreement or the Act, or (iii) the entry of a decree of judicial dissolution of the Company under Section 18-802 of the Act. Upon the occurrence of any event that causes the last remaining member of the Company to cease to be a member of the Company or that causes the Member to cease to be a member of the Company (other than upon continuation of the Company without dissolution upon (i) an assignment by the Member of all of its limited liability company interest in the Company and the admission of the transferee pursuant to this Agreement, or (ii) the resignation of the Member and the admission of an additional member of the Company pursuant to this Agreement), to the fullest extent permitted by law, the personal representative of such member is hereby authorized to, and shall, within ninety (90) days after the occurrence of the event that terminated the continued membership of such member in the Company, agree in writing (i) to continue the Company and (ii) to the admission of the personal representative or its nominee or designee, as the case may be, as a substitute member of the Company, effective as of the occurrence of the event that terminated the continued membership of such member in the Company.

(b) Notwithstanding any other provision of this Agreement, the death, dissolution, bankruptcy, insolvency or incapacity of the Member shall not cause the Company to be dissolved or its affairs to be wound up, and upon the occurrence of such an event, the Company shall not dissolve and shall continue without dissolution.

7.2 Effect of Dissolution; Termination. In the event of dissolution, the Company shall conduct only such activities as are necessary to wind up its affairs (including the sale of the assets of the Company in an orderly manner), and the assets of the Company shall be applied in the manner, and in the order of priority, set forth in Section 18-804 of the Act. The Company shall terminate when (i) all of the assets of the Company, after payment of or due provision for all debts, liabilities and obligations of the Company shall have been distributed to the Member in the manner provided for in this Agreement and (ii) the Certificate of Formation shall have been canceled in the manner required by the Act.

## ARTICLE VIII
## RESERVED

## ARTICLE IX
## MISCELLANEOUS PROVISIONS

9.1 Governing Law. This Agreement shall be governed by and construed under the laws of the State of Delaware (without regard to conflict of laws principles), all rights and remedies being governed by said laws.

9.2 Amendments. This Agreement may be amended or modified from time to time only by a written instrument executed by the Member.

9.3 Entire Agreement. This Agreement represents the entire agreement between the Member and the Company with respect to the within subject matter.

9.4 Binding Agreement. Notwithstanding any other provision of this Agreement, the Member agrees that this Agreement constitutes a legal, valid and binding agreement of the Member, and is enforceable against the Member in accordance with its terms.

9.5 Rights of Creditors and Third Parties under Operating Agreement. This Agreement is entered into between the Company and the Member for the exclusive benefit of the Company, the Member, and their respective successors and assignees. This Agreement is expressly not intended for the benefit of any creditor of the Company or any other person. Except and only to the extent provided by applicable statute, no such creditor or third party shall have any rights under this Agreement or any agreement between the Company and the Member with respect to any capital contribution or otherwise.

9.6 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which shall constitute one and the same instrument. Counterparts may be executed and/or delivered via facsimile, email (including PDF or any electronic signature complying with the U.S. federal ESIGN Act of 2000, e.g., www.docusign.com) or other transmission method, and any counterpart so executed and/or or delivered will be deemed to have been duly and validly delivered and be valid and effective for all purposes.

[Signature page follows.]

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The undersigned have executed this Limited Liability Company Agreement effective as of the date first set forth above.

**MEMBER**:

**PARAKEET MHC SENIOR, LLC**

By: Austin Berk
Austin Berk, President

[SIGNATURE PAGE TO AMENDED AND RESTATED LIMITED LIABILITY COMPANY AGREEMENT OF HARBOUR MHC LLC]